conduct -- excuse me. Ms. Walsh lied to Mr. Russell and agreed to that condition that she would return within a few weeks, knowing that she was not going to return. And upon returning to New York, Ms. Walsh filed a custody petition against him in New York. The custody issue is not at issue here, but that's just to give you some context.

Ms. Walsh's conduct was extreme and outrageous and had harmful effects on Mr. Russell. At the end of the case, we will ask you to compensate Mr. Russell for any economic damages he suffered as a result of Ms. Walsh's conduct. We'll also ask you to compensate Mr. Russell for his pain and suffering. And most importantly, I think, we will ask you to send a message to Ms. Walsh and anyone else who thinks about engaging in this type of conduct, that this conduct was unacceptable.

And I'm going to ask you to punish Ms. Walsh for her outrageous conduct by awarding punitive damages. The judge will explain to you under the law what constitutes punitive damages and when they can be given. But punitive means to punish, and we're going to ask you to give an award, punishing Ms. Walsh for her conduct. So although this is not a criminal case, you're still able to issue or give the



Public copy: the child's legal name is shown as E.V. Otherwise unchanged.

punishment for outrageous conduct, as the judge will instruct you.

As the Court also instructed you just a few moments ago, opening statements -- mine, Ms. Walsh's -- are not evidence. It's just a preview of what we expect to prove through the evidence. I've given you my preview, and you should hold me to my burden of proving my case by a preponderance of the evidence, 51 percent to 49 percent. That's what I'm required to do. Hold me to that.

Now, I expect that Ms. Walsh, who is not an attorney, will tell you a lot of things about her side of the story in her opening statement, and it may feel to you like she's testifying, since it's coming directly from her and not through an attorney. Please remember that none of what she says in her opening statement is evidence. It is not her testimony. It is just an unusual circumstance here, but she's going to give you a preview of what she suspects the evidence will show.

So at the end of the case, ask yourself, for both sides, did the evidence that you heard match the preview. I'm telling you what I expect the evidence will show. Ask yourself, Did the evidence show that? Similarly, think about what Ms. Walsh tells you in

her opening statement and ask whether or not the evidence showed what she said it was going to show.

As you listen to the evidence, please use your common sense. It's best tool that you have at your disposal. Apply the instructions that the Court gave you, and in the end I'm confident that you'll find Ms. Walsh liable for the claims of battery, intentional infliction of emotional distress, and domestic violence. Thank you.

MS. WALSH: Yeah, I would like to make an opening statement, if that's okay.

THE COURT: Very well.

MS. WALSH: As you saw yesterday, I got upset, so I'm going to try my best not to.

As you know, my name is Tara Walsh, age 37, and I'm the defendant in this action and being sued by Steven Russell. I was involved with him, and we have a daughter in common. Her name is [redacted] or Evie, and she's four years old. Both Evie and I live in New York and have since she was born.

I just want to say in this case that Mr. Waller said a bunch of things, but ultimately the truth matters, and he will not be able to prove what he told you with the truth. The evidence will show that Mr. Russell has a lengthy history of domestic

violence, substance abuse, and severe mental illnesses and disturbances. The evidence will show the abuse that I was subjected to by this individual as well as the danger he put our daughter in. The evidence will show that throughout our relationship, Mr. Russell abused me in many ways.

I don't -- maybe can I sit down here and read it?

THE COURT: You may.

MS. WALSH: I think it would be easier.

Okay. So Mr. Russell abused me in many ways. He constantly verbally abused me. He controlled where I went and who I could hang out with. He isolated me from my friends and family. He repeatedly threatened and intimidated me. He destroyed my personal property. He violated my privacy. He stopped me. He pressured me to commit felonies. He financially controlled me. He physically assaulted me. He sexually assaulted me. He threatened to kill me. He -- and he forcibly confined our daughter and I during the period we were visiting him in San Francisco shortly after Evie was born.

The evidence will show that after Evie's birth, when I went to San Francisco to visit

Mr. Russell, he held me there against my will. To make matters worse, Mr. Russell had an arsenal of weapons in our home, including guns. The evidence will show that after years of abuse at the hands of Mr. Russell, I lived in a perpetual state of survival, fear, and other hopelessness. I'm highly confident that if I had not escaped Mr. Russell, I likely would not be alive today.

My evidence will show that Mr. Russell has suffered from extreme mental disturbances dating back to 2016. He has a lengthy history of abusing drugs and almost died from an overdose of cocaine in December of 2015. Mr. Russell never got professional treatment for his issues, but instead made the decision to self-medicate. He also relied on those close to him to monitor him, including myself and his mother, and to help him stay off drugs and get healthy. When Mr. Russell began displaying irrational, dilution, dangerous behavior at the end of 2016, this continued until the day I fled San Francisco with our daughter in early June of 2018. Mr. Russell's psychotic behavior best mimics what I understood to be schizophrenia.

MR. WALLER: Objection.

THE COURT: Sustained.

MS. WALSH: My evidence will show he believed the Russians and CIA were spying on him and drugging him. He saw people standing in corners, that were not there, holding knives and weapons. He spent hours decoding a message from aliens on the carpet of his home. He stocked up on guns, knives, and Tasers. He believed he had metal particles in his body planted by agents that could be activated by things such as drones and to make him feel microwaves.

MR. WALLER: Objection, Your Honor.

THE COURT: Sustained.

MS. WALSH: I have a video where he's saying that.

THE COURT: Well, there -- we've already discussed this matter, Ms. Walsh. You must be mindful of my earlier rulings in this case.

MS. WALSH: And what was that, Your Honor?

THE COURT: That the topic of his mental health -- Mr. Russell's mental health condition is essentially off limits unless you can tie it to this event here.

MS. WALSH: Yes. Part of why I acted in self-defense was because he was psychotic. I mean, I have to be able to --

THE COURT: The Court has ruled. Continue,

please. Objection sustained. You cannot speak to that issue.

MS. WALSH: Okay. Well, I can speak to his behavior.

He consumed poison, such as turpentine, to kill his infections. He thought a whole plane ride was filled with agents and that poisonous gas leaked into the plane on his trip. He frequently complained of being drugged and poisoned and was brought to the emergency room. He identified neighbors and friends as being spies and claimed they poisoned him. He had a head shot list of identified agents with names like Baldy. He told me every white van had spies in them. He destroyed his homes and mine looking for spying devices he wrapped in aluminum foil and sent to the FBI to be tested. He ran toxic ozone machines in our homes and set fire in the homes. He ran weird light machines and blocked all the windows to prevent devices from shining in. He believed poisonous gas was leaking from walls and vents. He was poisoned by a swipe by -- what do you call those, a swipe by from an Asian man at a charity event. He wore EMF protective clothes and looked at his skin under microscopes for hours and hours. He told me fireflies were drones. He believed that I was a

real-life fairy with magical powers.

The evidence will show he spent hundreds of thousand dollars a month on a full-time security team, one of which convinced him to give him a million dollars, who he later sued. Mr. Russell also thought that I was being poisoned and targeted. He pressured me to undergo bizarre and dangerous medical treatments, such as getting ozone pumped into my blood and injecting myself with various hormones.

My evidence will show that Mr. Russell abused any drug he could get his hands on. He took these drugs willingly and enjoyed the effects.

MR. WALLER: Objection.

THE COURT: Sustained.

MS. WALSH: Okay. On a daily basis Mr. Russell drank heavily and mixed alcohol with drugs. What he did so, he often became violent. My evidence will show I sacrificed my own wellbeing to protect and care for Mr. Russell. No matter how hard I tried, I could not get him to stop abusing drugs and abusing me.

The evidence will show I went through exhaustive measures to get Mr. Russell treatment. His family and I planned interventions. I begged nurses and doctors in the ER to submit him for

psychiatric care. I told his doctors and my doctors about his behavior, including our shared doctors. He hired security guards to protect him, many of whom were former police officers, and I begged them for help.

The evidence will show that prior to our daughter's birth, I lived in New York City and Brooklyn, New York, not in San Francisco. Although I visited Mr. Russell in San Francisco, I've always had my own home in New York. In 2017 in Brooklyn, I spent months setting up the apartment for our daughter, finding her the best doctors and activities.

Mr. Russell spent my pregnancy engaging in increasingly severe forms of domestic abuse. When he stayed with me in Brooklyn, he would often stay out all night and tell me things, like he was sleeping with other girls, upon his return. He forced me to give him oral sex while he was watching porn. He yelled at me -- he yelled at me, broke my cell phone, and put a hole in the living room. He installed secret cameras in my Brooklyn apartment. He often called me fat, disgusting, and said he would never love me. He often raised his hand as if to threaten to strike me, and often would leave me sobbing on the

floor, begging him just to be kind to me and that he was hurting the baby from the stress.

Concurrently, he continued his -- what I consider to be mental disturbances, including destroying my homes looking for spying devices, but no matter how had I tried to leave, I still thought I loved him and that after the baby was born, he would get help and be kind. I also desperately wanted to be a family and always was able to see glimmers of good in Mr. Russell.

Weeks before -- weeks before our daughter's due date, after weeks telling me earlier he did not love me, Mr. Russell professed his undying love and wished to be a family before returning to see me in New York. The first night, he entered my apartment with the security guard, who pulled out a gun like it was a toy. That night he accused our friend Chris, who set us up originally --

MR. WALLER: Your Honor, I have to object because she's really testifying.

MS. WALSH: I mean -- but Brian, you said things --

MR. WALLER: She's not -- the evidence, how she's going to prove anything. She's testifying, like I said she was going to do, and a lot of this --

MS. WALSH: I have --

MR. WALLER: -- and she's poisoning the jury by testifying.

THE COURT: All right. Okay. So the objection is that -- let's -- the objection is sustained.

Ms. Walsh, I can appreciate that you want to lay out what you think you're going to present in your case, but let's see if we can narrow the focus to the incident here, which is what's really at issue before the Court and the jury. Okay.

MS. WALSH: Yes.

THE COURT: If you want to lay out some of that stuff during the presentation or your evidence or through cross-examination, you're welcome to do so. It's always subject to rules of relevancy and some of the pretrial motions that we dealt with. So you must be mindful of those rulings as you proceed with this case. You --

MS. WALSH: Respectfully, Your Honor, Mr. Waller included things that we had talked about in limine in his opening statements and stuff.

THE COURT: Yes, but it was incumbent upon you to raise an objection. Otherwise there's nothing I can do. So the Court is not here to inject its own